

24STCV26653 24STCV26653

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV26653

PATRICIA

BARTLEY vs LAWRENCE A. BROCKMAN, D.M.D., et al.

July

13, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT ARTHUR B. SCHLACHTMAN, DDS' MOTION FOR
PROTECTIVE ORDER AND MONETARY SANCTIONS.

RULING:

The

Court denies the Motion for Protective Order and both sanctions requests.

Plaintiff

to give notice.

I.

BACKGROUND

On October 11, 2024,

PATRICIA BARTLEY (Plaintiff), presently a self-represented litigant, filed a Complaint against LAWRENCE A. BROCKMAN, D.M.D.; ARTHUR B. SCHLACHTMAN DDS; and JOSEPH P. SABET, DDS, et al. (Defendants).

On June 25, 2025,

Plaintiff filed the Second Amended Complaint (SAC), having claims for:

1.

PROFESSIONAL NEGLIGENCE;

2. FRAUD;

3. MEDICAL BATTERY;

4. COLLUSION AND CONCEALMENT;

5. INTENTIONAL INFLICTION OF EMOTIONAL
DISTRESS;

6. FRAUDULENT BILLING;

7. EXTORTION;

8. PRIVACY BREACH;

9. INTENTIONAL INTERFERENCE WITH CONTRACTUAL
RELATIONS;

10. BREACH OF CONTRACT (EXPRESS AND IMPLIED); and

11. BREACH OF FIDUCIARY DUTY.

Plaintiff alleges that

Defendants' collective negligence and collusive fraudulent concealment, involving failed dental procedures and inappropriate medications, caused Plaintiff's bone infections and loss, multiple tooth extractions, and the need for extensive corrective procedures, with estimated costs of up to \$100,000. (E.g., SAC, ¶¶ 11-15.)

On January 28, 2026, the Court's Minute Order relieved Plaintiff's counsel as attorney of record.

On June 10, 2026, ARTHUR

B. SCHLACHTMAN, D.D.S. (Defendant) filed the Motion for Protective Order against Plaintiff's further communicating with the represented client and circumventing the Discovery Act, and requesting monetary sanctions.

Plaintiff filed an

Opposition emphasizing statutory rights for patients to request their own medical information, and requesting monetary sanctions.

II.

LEGAL STANDARD

Moving parties have the

burden to show good cause for protective order. (Emerson Elec. Co. v Superior Court (1997) 16 Cal.4th 1101, 1110.)

To prevail on motions for protective orders, moving parties have the burden "to demonstrate that the 'discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive' ..., or that the 'selected method of discovery is unduly burdensome or expensive'" (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.)

"While the discovery

statutes give the trial court wide discretion in making such orders as may be necessary to protect parties and deponents from abuse or misuse of depositions 'there can be no room for the exercise of such discretion if no ground exists upon which it might operate.' ... If there is no legal justification for such

exercise of discretion it must be held that an abuse occurred.” (Oak Grove School Dist. v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 712.)

Courts construe statutes

with reference to the entire system of law, to harmonize, while avoiding anomalies. (Hohenshelt v. Superior Court (2025) 18 Cal.5th 310, 332.) “

“A court must, where reasonably possible, harmonize statutes, reconcile seeming inconsistencies in them, and construe them to give force and effect to all of their provisions.” ” (Gamo v. Merrell (2025) 113 Cal.App.5th 656, 663.) “The legislature is ... presumed to have enacted legislation with existing law in mind.” (Harris v. Verizon Communications (2006) 141 Cal.App.4th 573, 585, disapproved on other grounds by Azure Ltd. v. I-Flow Corp. (2009) 46 Cal.4th 1323, 1336.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Safechuck v. MJJ Prods., Inc. (2023) 94 Cal.App.5th 675, 700 [quoting Code Civ. Proc., § 2025.420, subd. (h)].)

III.

ANALYSIS

Defendant essentially seeks

a Protective Order prohibiting Plaintiff from further contacting the client and from requesting records unless via the Discovery Act preemptive of the other statutory provisions addressing patients obtaining records from health care providers.

Plaintiff's Opposition

emphasizes, as preempting the Discovery Act, various statutory rights for individual patients to obtain their own medical records, such as Health & Safety Code § 123110, HIPAA, HITECH, and the 21st Century Cures Act.

The parties are raising

several first-impression issues, while citing nothing directly on point. The “A legal proposition asserted without apposite authority necessarily fails.” (People v. Taylor (2004) 119 Cal.App.4th

628, 643.) Court has done a lot of independent research that reveals a dearth of law on point.

For instance, the Motion cites no governing authority directly on point about California Rules of Professional Conduct, rule 4.2, applying to a self-represented litigant regarding contacting represented parties, or concerning Discovery Act circumvention. (See Motion, pp. 10-17.) For example, a cited case did not hold, “protective orders are an appropriate remedy where a party’s conduct demonstrates a pattern of attempting to circumvent the formal discovery process”. (Motion, 13:8-11.) (See *Truitt v. Superior Court* (1997) 59 Cal.App.4th 1183, 1186 [“filed a motion to quash the deposition subpoena ... and for a protective order and evidentiary and monetary sanctions.”].)

Regarding attorney ethics and California Rules of Professional Conduct, rule 4.2: “This rule does not prohibit communications with a represented person* concerning matters outside the representation.” (CA ST RPC Rule 4.2.) Clients are permitted to communicate with each other, ex parte, without attorney involvement. Distinguishably, “‘[w]hen the content of the communication to be had with the opposing party originates with or is directed by the attorney, [the communication] is prohibited by rule 2–100 [now rule 4.2].’ ” (San Francisco Unified Sch. Dist. ex rel. *Contreras v. First Student, Inc.* (2013) 213 Cal.App.4th 1212, 1235.)

Additionally, requests for one’s own medical records relate to statutory rights, apart from the Discovery Act. For example: “In the interest of giving an individual free access to his or her own medical records, the covered entity is under an absolute obligation to furnish those records on request.” (*Bugarin v. Chartone, Inc.* (2006) 135 Cal.App.4th 1558, 1563.) (Underscoring added.) But the line drawn between requesting records as a patient, or in connection with litigation, is not always entirely clear, as it can be either. (See, e.g., *Spencer S. Busby, APLC v. BACTES Imaging Sols. LLC* (2022) 74 Cal.App.5th 71, 75 [“requests from patients seeking their own medical records, ... requests from attorneys seeking their clients’ medical records in anticipation of potential litigation.”].) Importantly, here Plaintiff is self-represented, and not a client of any attorney of record.

As for proof offered in

support, Exhibit A to the Motion is expressly confined to requesting Plaintiff's own records, such that it should not be preempted by the Discovery Act. However, Exhibit C arguably is misdescribed as a patient seeking records, and reads like a discovery request, as follows:

1.

The current custodian of records for Mega Tech Dental Laboratory;

2.

The current address, telephone number, email address, and contact information for the custodian of records;

3.

The identity of any successor entity, purchaser, acquiring laboratory, parent entity, affiliated entity, records repository, storage vendor, archive vendor, or other person or entity maintaining Mega Tech Dental Laboratory records;

4.

The current location of any laboratory prescriptions, work orders, invoices, models, impressions, scans, digital files, shade records, design specifications, photographs, communications, or other records relating to restorations fabricated for me;

5.

The identity of any person or entity known to possess, maintain, store, archive, or control records relating to laboratory work performed for my treatment.

Additionally, a protective order can be premature before potential requests are made. Defendant may or may not be required by law to respond, outside of discovery procedure, depending upon the circumstances of the particular request. (Cf. *O'Grady v. Superior Court* (2006) 139 Cal.App.4th 1423, 1454 ["As a result, there is ordinarily no reliable indication that discovery will be sought until it is actually served. A request for a protective order will thus appear premature, because there is nothing to protect against."].) Presently, the Court lacks sufficient information to rule soundly, as to whether any given request from Plaintiff involves one of several potentially applicable statutory rights, or a separate matter necessarily falling under the Discovery Act. As a matter of legislative interpretation, and harmonizing the provisions, no one statute

appears to preempt the other as a matter of law, but factual information may affect the reasoning as to which statute actually applies.

Moreover, the possible burden upon Defendant does not appear to be substantial— Defendant theoretically could properly decline to provide records not statutorily authorized, or forward all communications to counsel to handle if part of cognizable procedure in relation to this case litigation, such as a discovery objection as follows: Parties cannot operate outside of the parameters of the Discovery Act that has subsumed the entire field pertaining to the gathering evidence in preparation for trial. (Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1288.)

All things considered, the Court finds insufficient justification for the Proposed Protective Order and denies the Motion, in its discretion.

Finally, the Court denies the sanctions requests, given the debatable and unrefined law as to the several issues raised, premature state of the facts, and inherent discretion involved in protective orders. As such, there is substantial justification for positions taken by each side.

IV.

CONCLUSION

Accordingly, the Court denies the Motion, and both sanctions requests, for reasons set forth above.